

Regulatory Filings, Tax Elections & Capital Importation Plan

Sequenced filings and elections required to secure ministerial concessions, ZIMRA rulings, financing compliance and capital importation sign-off

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PHASE 1

Regulatory Filings & Ministerial Concessions

✓

Submit a formal **Reorganisation Application** to the **Minister of Mines**.

Unlocks 5% SCGT rate cap

✓

Lodge a **sworn Director's Non-Avoidance Affidavit** with ZIMRA under Section 30B(5)(c).

Unlocks 0% SCGT exemption

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PHASE 2

ZIMRA Private Ruling & Statutory Tax Elections

✓

Apply for a **ZIMRA Binding Private Ruling** under Section 15(1) / 15(2) for the common-control share swap.

Certainty on share-swap treatment

✓

File the **Fourth Schedule (Para 7) Election** for machinery / vehicle transfers, at **Tax Written-Down Value (TWDV)**.

No recoupment on transfer

✓

Obtain a ZIMRA VAT "**Transfer of a Going Concern**" (**TOGC**) exemption certificate.

0% VAT on the transfer

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PHASE 3

Financing & Transfer Pricing Protocols

✓

Finalise intercompany loan agreements, adhering strictly to Section 23E leverage tiers (**1:1, 3:1, 4:1**).

Interest stays deductible

✓

Complete a **Transfer Pricing comparability study**, benchmarking interest rates against sovereign risk premiums.

Arm's-length support

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PHASE 4

Capital Importation & Ultimate Beneficial Ownership Registration

✓

Process foreign capital through a commercial bank **Authorised Dealer** to secure **RBZ Capital Importation Certificates (ITTs)**.

Evidences capital inflow

✓

Obtain a **ZIDA Investment Licence** under Chapter 14:37.

Guarantees dividend repatriation

✓

Register **Ultimate Beneficial Owners (UBOs)** under Sections 72 & 240, COBE Act [Chapter 24:31].

Statutory compliance

Neverlank Chartered Accountants — Advisory Note (regulatory & tax compliance roadmap)

Prepared for internal review purposes